



As of June 23, 2009

Bureau of Export Administration, Commerce

§ 700.52

Commerce. A sample Form BXA-999 is attached at Appendix I.

[49 FR 30414, July 30, 1984; 49 FR 50171, Dec. 27, 1984. Redesignated at 54 FR 601, Jan. 9, 1989, as amended at 63 FR 31924, June 11, 1998]

§ 700.51 Requests for priority rating authority.

(a) If a rated order is likely to be delayed because a person is unable to obtain items not normally rated under this regulation, the person may request the authority to use a priority rating in ordering the needed items. Examples of items for which priority ratings can be authorized include:

(1) Production or construction equipment;

(2) Computers when not used as production items; and

(3) Expansion, rebuilding or replacing plant facilities.

(b) *Rating authority for production or construction equipment.* (1) A request for priority rating authority for production or construction equipment must be submitted to the appropriate Delegate Agency. The Delegate Agency may establish particular forms to be used for these requests (e.g., Department of Defense Form DD 691.)

(2) When the use of a priority rating is authorized for the procurement of production or construction equipment, a rated order may be used either to purchase or to lease such equipment. However, in the latter case, the equipment may be leased only from a person engaged in the business of leasing such equipment or from a person willing to lease rather than sell.

(c) *Rating authority in advance of a rated prime contract.* (1) In certain cases and upon specific request, Commerce, in order to promote the national defense, may authorize a person to place a priority rating on an order to a supplier in advance of the issuance of a rated prime contract. In these instances, the person requesting advance rating authority must obtain sponsorship of the request from the appropriate Delegate Agency. The person shall also assume any business risk associated with the placing of rated orders if these orders have to be cancelled in the event the rated prime contract is not issued.

(2) The person must state the following in the request:

It is understood that the authorization of a priority rating in advance of our receiving a rated prime contract from a Delegate Agency and our use of that priority rating with our suppliers in no way commits the Delegate Agency, the Department of Commerce or any other government agency to enter into a contract or order or to expend funds. Further, we understand that the Federal Government shall not be liable for any cancellation charges, termination costs, or other damages that may accrue if a rated prime contract is not eventually placed and, as a result, we must subsequently cancel orders placed with the use of the priority rating authorized as a result of this request.

(3) In reviewing requests for rating authority in advance of a rated prime contract, Commerce will consider, among other things, the following criteria:

(i) The probability that the prime contract will be awarded;

(ii) The impact of the resulting rated orders on suppliers and on other authorized programs;

(iii) Whether the contractor is the sole source;

(iv) Whether the item being produced has a long lead time;

(v) The political sensitivity of the project; and

(vi) The time period for which the rating is being requested.

(4) Commerce may require periodic reports on the use of the rating authority granted under paragraph (c) of this section.

(5) If a rated prime contract is not issued, the person shall promptly notify all suppliers who have received rated orders pursuant to the advanced rating authority that the priority rating on those orders is cancelled.

§ 700.52 Examples of assistance.

(a) While special priorities assistance may be provided for any reason in support of this regulation, it is usually provided in situations where:

(1) A person is experiencing difficulty in obtaining delivery against a rated order by the required delivery date; or

(2) A person cannot locate a supplier for an item needed to fill a rated order.

(b) Other examples of special priorities assistance include:

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- (1) Ensuring that rated orders receive preferential treatment by suppliers;
- (2) Resolving production or delivery conflicts between various rated orders;
- (3) Assisting in placing rated orders with suppliers;
- (4) Verifying the urgency of rated orders; and
- (5) Determining the validity of rated orders.

§ 700.53 Criteria for assistance.

Requests for special priorities assistance should be timely, *i.e.*, the request has been submitted promptly and enough time exists for the Delegate Agency or Commerce to effect a meaningful resolution to the problem, and must establish that:

- (a) There is an urgent need for the item; and
- (b) The applicant has made a reasonable effort to resolve the problem.

§ 700.54 Instances where assistance will not be provided.

Special priorities assistance is provided at the discretion of the Delegate Agencies and Commerce when it is determined that such assistance is warranted to meet the objectives of this regulation. Examples where assistance may not be provided include situations when a person is attempting to:

- (a) Secure a price advantage;
- (b) Obtain delivery prior to the time required to fill a rated order;
- (c) Gain competitive advantage;
- (d) Disrupt an industry apportionment program in a manner designed to provide a person with an unwarranted share of scarce items; or
- (e) Overcome a supplier's regularly established terms of sale or conditions of doing business.

[49 FR 30414, July 30, 1984. Redesignated at 54 FR 601, Jan. 9, 1989, as amended at 63 FR 31924, June 11, 1998]

§ 700.55 Assistance programs with Canada and other nations.

(a) To promote military assistance to foreign nations, this section provides for authorizing priority ratings to persons in Canada and in other foreign nations to obtain items in the United States in support of approved programs. Although priority ratings have no legal authority outside of the

United States, this section also provides information on how persons in the United States may obtain informal assistance in Canada.

(b) *Canada.* (1) The joint U.S.-Canadian military arrangements for the defense of North America and the integrated nature of their defense industries as set forth in the *U.S.-Canadian Statement of Principles for Economic Cooperation* (October 26, 1950) require close coordination and the establishment of a means to provide mutual assistance to the defense industries located in both countries.

(2) The Department of Commerce coordinates with the Canadian Public Works and Government Services Canada on all matters of mutual concern relating to the administration of this regulation. A copy of the Memorandum of Understanding between the two departments is provided at appendix IV.

(3) Any person in the United States ordering defense items in Canada should inform the Canadian supplier that the items being ordered are to be used to fill a rated order. The Canadian supplier should be informed that if production materials are needed from the United States by the supplier or the supplier's vendor to fill the order, they should contact the Canadian Public Works and Government Services Canada for authority to place rated orders in the United States.

(4) Any person in Canada producing defense items for the Canadian government may also obtain priority rating authority for items to be purchased in the United States by applying to the Canadian Public Works and Government Services Canada in accordance with procedures specified by that Department.

(5) Persons in Canada needing special priorities assistance in obtaining defense items in the United States may apply for such assistance to the Canadian Public Works and Government Services Canada. Public Works and Government Services Canada will forward appropriate requests to Commerce.

(6) Any person in the United States requiring assistance in obtaining items in Canada must submit a request through the Delegate Agency to Commerce on Form BXA-999. Commerce

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**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEVADA**

UNITED STATES OF AMERICA,	)	
	)	
Plaintiff,	)	
	)	
WALKER RIVER PAIUTE TRIBE,	)	IN EQUITY NO. C-125-ECR
	)	Subproceeding: C-125-B
Plaintiff-Intervenor,	)	
	)	
vs.	)	REPORT OF THE COMMITTEE OF
	)	CERTAIN PARTIES REGARDING
WALKER RIVER IRRIGATION DISTRICT,	)	CASE MANAGEMENT ISSUES
a corporation, et al.,	)	ASSIGNED BY THE COURT
	)	
Defendants.	)	
_____	)	

During the May 29, 2007, status conference in this action, the Court ordered that counsel for certain parties form a committee to discuss eight designated case management issues and to file a summary of accomplishments prior to the status conference set for August 20, 2007. *Minutes of Court* (May 29, 2007). The following summarizes the accomplishments of this group and the status of their discussions and continuing efforts to address some of these issues.

The attorneys who participated in some or all of this effort are: Susan Schneider, United

States of America (“United States”); Wes Williams, Jr., Walker River Paiute Tribe (“Tribe”); Simeon Herskovits, Mineral County/Walker Lake Working Group (“MC/WLWG”); John Howard and William Schaeffer, D.Haight/the Landolts; Laura R. Schroeder, Reviglio; Karen Peterson, U.S. Board of Water Commissioners (“U.S. Board”); Marta Adams, Nevada Dept. of Wildlife (“Nevada”); Dale Ferguson, Walker River Irrigation District (“WRID”). As stated below, some of the attorneys have opted out of working on certain issues.

The group met by telephone on four occasions: June 14, 27; July 24; and August 9, 2007. In addition, various participants conferred on other occasions. The following summarizes efforts and accomplishments according to each of the eight tasks assigned.

This report has been authorized by the members of the committee or their delegates to be filed on behalf of the committee. On August 9, 2007, Attorney Howard stated that he expects to file his own report and agrees in part and disagrees in part with the committee report, but declined to identify his specific concerns. Attorney Schroeder may join in this separate report.

1. Procedure for service of pleadings

a. Participants:

Attorneys Howard/Schaeffer and Schroeder have opted out of working on this issue.

b. Status of the parties’ efforts:

This issue requires consideration of a number of applicable requirements, including: *In re Authorization for Conversion to Case Management/Electronic Case Filing (CM/ECF)*, Special Order 109Y (Sept. 29, 2005) (“Special Order 109Y”); U.S. Dist Ct., D. Nev., Electronic Filing Procedures (rev. Aug. 24, 2006); and Fed. R. Civ. P. 5. An approach to this issue also requires consultation with the Court Clerk’s Office, which effort has begun, and requires

consideration of the use and application of PACER.

The parties have begun to discuss these requirements and various approaches to this issue and will be prepared to discuss these issues in further detail and identify some approaches under consideration with the Court during the upcoming status conference.

2. **Parties to the litigation:**

a. Participants:

Attorneys Howard/Schaeffer and Schroeder have opted out of working on this issue. Attorneys Schneider, Peterson and Adams have taken the lead on this issue with review and additional work to be provided by Attorneys Ferguson and Herskowits.

b. Scope of this Issue:

The parties believe this issue focuses on the need to correct, update and coordinate with the Court Clerk's office regarding the Certificate of Service ("COS") in this case. The parties wish to confirm their understanding of the scope of this issue with the Court on August 20, 2007. Furthermore, the attorneys working on this issue believe that the COS in each of the three cases require corrections and updating and have focused their efforts accordingly. As a basic matter, the Court and the parties will conserve resources if each COS is updated and all attorneys are required to comply with the Court's requirement that they register for e-file.

c. Coordination with Clerk's Office:

Attorneys Schneider and Peterson have each discussed this issue briefly with the Clerk's Office, and Attorney Peterson has arranged a meeting with Lia Griffin of the Clerk's Office for the morning of August 20, 2007.

d. C-125:

On July 9, 2007, Attorneys Adams, Peterson and Schneider reviewed the Court's COS and their own COS's, identified names to be dropped, and divided inquiries to be made among themselves. We will be able to provide a preliminary list of proposed corrections and changes to the Court on August 20, 2007, but are uncertain how the Court and/or Clerk's Office wants this information transmitted and if it requires additional filings (e.g., whether each attorney we propose to delete from the COS must ask to be deleted). We anticipate being able to provide additional information after we meet with the Clerk's Office on the morning of the scheduled status conference.

e. C-125-B:

This review has not yet begun. This review can be divided into a review of the "core group of attorneys," additional attorneys, and pro se parties who have filed notices of appearance. Parties who have been dismissed should be removed from the COS, if that has not already occurred. We anticipate discussing a process for this review with the Clerk's Office.

f. C-125-C:

This review has not yet begun. Attorney Herskovits will take the lead on this effort. The State and WRID have indicated they have concerns and will be speaking further with Attorney Herskovits.

3. **Making discovery requests:**

a. The Court's directions:

The Court directed the committee to consider if there is a way to use a standard set of discovery to be served by the defendants on the plaintiffs and the plaintiffs on the defendants that

would encompass most of the issues identified. The parties were to discuss procedures for such discovery. The Court recognized that implementation of discovery was “down the road.” Tr. at 13-15, 35.

b. Status of the parties’ efforts:

The parties agree that use of a standard set of interrogatories and document production requests may be useful, but there is not yet universal agreement as to how it may be helpful in this case. The parties agree that the substantive content of any standard discovery cannot be prepared until the identity of legal theories and threshold issues has occurred, if not later. Consequently, assuming such an approach is appropriate for this case, they have agreed to hold off preparing the substantive content of any such discovery. In the meantime, the parties agree that additional investigatory work can be done now to identify instances where such discovery has been used and consider the procedural requirements for such an approach to discovery. The parties agreed to consult other attorneys about such an approach and to collect and share information on specific approaches used in other cases. Their initial date to begin to share such information is August 10, 2007.

4. **Website proposition:**

a. The Court’s directions:

The Court directed the parties to consider the idea of a website and use of the Internet, and noted that the parties would need to consider such issues as the purposes to be served, who would implement and maintain a website, and who would be responsible for the costs of such an effort. Tr. at 13.

b. Status of the parties' efforts:

The parties view the general concept of using a website favorably, but there is currently no agreement on the use of a website and the purposes to be served by a website (e.g., pleadings compilation, document repository, discovery production) and how that might relate to the other case management issues under discussion. Based on the review and scrutiny of preliminary investigations into one possible service provider, the parties agree that they do not have sufficient information on available technology and related costs for the various purposes for which a website might be used. Consequently, as an initial matter, the parties agree that these issues require further investigation, which is ongoing.

5. **Method for dealing with persons without access to website:**

The parties have discussed this issue and determined that it should be deferred pending further discussion and possible resolution of related case management issues (e.g., procedure for service of pleadings; website proposal). The resolution of some of these issues may address this issue. We also note Chief Judge Pro's determination in Special Order 109Y that "the CM/ECF System provides adequate procedures for the filing, review and retrieval of documents by parties who are not able to access the Electronic Filing System from a remote location."

6. **Target date for completion of service:**

a. C-125-B:

The United States and Tribe have identified a "target date" for the completion of service of the end of calendar year 2008. On May 29, 2007, the United States noted before the Court that this date is not "carved in stone" and does not include publication, challenges, etc. to the completion of service. Tr. at 9-11.

b. C-125-C:

MC/WLWG has identified a “target date” for the completion of service of the end of calendar year 2008. MC/WLWG also asserts that this date does not include publication, challenges, etc., to the completion of service.

7. **Set forth a schedule to identify legal issues and preliminary determination of legal issues**

a. The Court’s directions:

The Court directed the committee “to discuss and perhaps set forth a schedule, if you can agree on it, for the identity of legal issues and preliminary determination of threshold issues. . . . It makes some sense to me that the plaintiffs disclose their legal issues first and then the defendants sometime after that.” Tr. at 35.

b. Identification of Legal Issues:

i. Scope of this Issue:

The parties agree that this issue concerns just C-125-B and does not address C-125-C, and is limited to Phase One of the C-125-B litigation, which addresses the claims of/on behalf of the Walker River Paiute Tribe. Further, the parties agree that the form of this identification may be brief (e.g. John Howard: Just a “one-pager”).

ii. Schedule for identification of legal theories:

Note - all deadlines are subject to adjustment.

- | | | | |
|-----|-----------------|--------------------|---------------|
| (1) | U.S. and tribe: | 45 days | Oct. 4, 2007 |
| (2) | defendants: | 45 days thereafter | Nov. 19, 2007 |

c. Schedule to discuss and identify threshold issues:

i. Parties to exchange proposed threshold issues among themselves:

[90 days after defendants provide their legal theories] Feb. 18, 2008

- ii. Parties to confer within 30 days after proposed threshold issues are exchanged. March 19, 2008
- iii. Parties to report to Court on status of this work at the following status conference or at another date set by the Court.

8. Modification of service package of domestic users:

The parties have deferred to Attorneys Schneider and Ferguson to address this issue. They will present suggested changes to the service package regarding domestic users and may also suggest further changes to the package that may assist with other case management issues.

9. Next Steps:

The parties' efforts are continuing and they will provide the Court with an additional report before the next status conference or as directed by the Court.

Respectfully submitted,

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By: /s/ Susan L. Schneider
Susan L. Schneider

Date: August 10, 2007

Attorney for the United States of America

CERTIFICATE OF SERVICE

I hereby certify that on August 10, 2007, I served or caused to have served a true and correct copy of the foregoing REPORT OF THE COMMITTEE OF CERTAIN PARTIES REGARDING CASE MANAGEMENT ISSUES ASSIGNED BY THE COURT by electronic mail or first-class mail, postage prepaid, addressed to the following persons:

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Individual Report for Docket Number : EL09-014

Docket Title:

IN THE MATTER OF THE FILING BY OTTER TAIL POWER COMPANY FOR APPROVAL OF ITS UPDATED CUSTOMER RATE SCHEDULE BROCHURES

Open Date : 07/24/2009**Close Date :** 08/19/2009**Days Open :** 26**Filing Type :**

EL

Tax ID # :

41-0462685

Attorney :

KS

Staff :

JT

Primary Appeal Information**Appeal Date :****Appellant :****Decision Date :****Appeal Location :****Current Status :****Description of Above Decision :****Secondary Appeal Information****Appeal Date :****Appellant :****Decision Date :****Appeal Location :****Current Status :****Description of Above Decision :**

IN THE MATTER OF THE FILING BY OTTER TAIL POWER COMPANY FOR APPROVAL OF ITS UPDATED CUSTOMER RATE SCHEDULE BROCHURES Filed 07/24/2009; Pending.

☒ Irregular**Irregular's E-Mail Addresses:**

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Irregular's Fax Numbers:

Individual Report for Docket Number : EL09-014

Docket Notes :

07/24/09 - Letter from OTP and Brochures - M:puc.sd.gov/commission/dockets/electric/2009/el09-014/072409.pdf

07/30/09 - Weekly Filings - S:puc.sd.gov/WeeklyFiling/2009/0723-0729.aspx

08/19/09 - Order Approving Brochures - M:puc.sd.gov/commission/orders/electric/2009/el09-014.pdf

08/19/09 - Docket Closed - M:puc.sd.gov/commission/dockets/electric/2009/el09-014/close.pdf